

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard
on Wednesdays at 9:00 a.m.

Date: September 9, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Doe 1 vs. Falck Mobile Health, Corp	TENTATIVE RULING: Defendant Falck Mobile Health Corp.'s demurrer to the Second Amended Complaint is SUSTAINED without leave to amend as to the Second, Fourth, and Fifth Causes of Action, and OVERRULED as to the First and Third Causes of Action. The demurrer based on uncertainty is OVERRULED. Defendant Falck Mobile Health Corp.'s motion to strike is GRANTED without leave to amend as to the punitive-damages allegations in paragraphs 43 and 46 as against Falck and Prayer for Relief Nos. 3, 5, and 6. The motion is MOOT as to paragraphs 53, 75, 77, 78, 81, and 82 in light of the ruling sustaining the demurrer to the Second, Fourth, and Fifth Causes of Action without leave to amend. 1. Demurrer Defendant Falck Mobile Health Corp. ("Falck") demurs to each of the five causes of action asserted in the Second Amended Complaint ("SAC") on the grounds that they fail to state a cause of action and are uncertain.

First Cause of Action for Sexual Abuse of a Minor

California Code of Civil Procedure section 340.1 (“§ 340.1”) governs actions for recovery of damages suffered as a result of childhood sexual assault. Under subdivision (c), “childhood sexual assault” includes specified sexual acts committed against a plaintiff while under the age of 18. (§ 340.1, subd. (c).)

As relevant here, subdivision (a)(2) applies to an action against any person or entity that “owed a duty of care to the plaintiff, if a wrongful or negligent act by that person or entity was a legal cause of the childhood sexual assault that resulted in the injury to the plaintiff.” (§ 340.1, subd. (a)(2).) Thus, as against Falck, Plaintiff must sufficiently allege that (1) Falck owed Plaintiff a duty of care; (2) Falck committed a wrongful or negligent act; (3) Falck’s conduct was a legal cause of the childhood sexual assault; and (4) the assault resulted in injury to Plaintiff. (*Ibid.*)

To state a negligence claim, a plaintiff must allege that the defendant owed a duty of care, breached that duty, and that the breach proximately caused the plaintiff’s injury. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213 (“*Brown*”).) Whether a duty exists is a question of law, while breach and causation are generally questions of fact. (*Ibid.*; *Cabral v. Ralphs Grocery Co.* (2011) 51 Cal.4th 764, 769, 772–774.)

Although each person has a duty to act with reasonable care (Civ. Code, § 1714), “ ‘one owes no duty to control the conduct of another, nor to warn those endangered by such conduct.’ [Citation.] ‘A person who has not created a peril is not liable in tort merely for failure to take affirmative action to assist or protect another unless there is some relationship between them which gives rise to a duty to act.’ ” (*Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607, 619.) Such a duty may arise where the defendant has a special relationship with either the person whose conduct must be controlled or the foreseeable victim. (*Ibid.*)

A special relationship with the victim exists where the relationship gives the victim a right to expect protection from the defendant. (*Brown, supra*, 11 Cal.5th at pp. 215–216.) Examples include relationships between parents and children, colleges and students, employers and employees, common carriers and passengers, and innkeepers and guests. (*Id.* at p. 216.) The existence of such a special relationship places the defendant in a unique position to protect the plaintiff from injury, and the law requires the defendant to use that position accordingly. (*Ibid.*)

Here, the SAC alleges, in pertinent part as follows:

Plaintiff was 14 years old when Falck employees transported her injured brother to UCI Medical Center. (SAC ¶ 9.) Plaintiff's mother entrusted Plaintiff to Defendants' care, custody, and supervision because Plaintiff was a minor and could not travel independently. (SAC ¶ 12.) Defendants affirmatively accepted responsibility for Plaintiff's safety and supervision, directed where she was to sit and stand, and exercised authority over her movements. (SAC ¶¶ 13–17.) Plaintiff remained dependent on Defendants for supervision and safe placement, and Defendants retained custody and control over her after arriving at UCI because her mother had not yet arrived. (SAC ¶¶ 15–21.)

While Plaintiff remained under this supervision, the Aggressor directed Plaintiff to stand next to him and, while other medical staff were distracted, pulled Plaintiff toward him and reached under her shirt and bra to grope her breasts. (SAC ¶¶ 22–24.) Falck, through its employees, took custody and control of her and thereby owed her a duty of reasonable care; Falck failed to supervise and protect her while she was under its custody and control; and this failure was a legal and proximate cause of the childhood sexual assault. (SAC ¶¶ 40–42.)

The court finds that the SAC adequately alleges the existence of a special relationship. Specifically, Plaintiff alleges that her mother entrusted her to Defendants' care and supervision; Defendants accepted responsibility for her safety; Plaintiff was dependent upon Defendants and subject to their direction; and Defendants' custody and control continued after arriving at UCI until Plaintiff's mother arrived. (SAC ¶¶ 12–21.) These factual allegations, accepted as true on demurrer, support a reasonable inference that Plaintiff was sufficiently vulnerable and dependent upon Falck and that Falck exercised sufficient control over her to give rise to an affirmative duty of reasonable care.

The court also finds that the SAC sufficiently alleges breach and causation. Plaintiff alleges Falck failed to supervise and protect her while she was under its custody and control and allowed the Aggressor to exercise authority over her without adequate supervision or safeguards, thereby placing her in the circumstances in which the assault occurred. (SAC ¶¶ 41–42, 55–64.) At the pleading stage, these allegations are sufficient to plead that Falck breached its asserted duty and that the breach was a legal cause of Plaintiff's injury.

Falck argues that the alleged sexual assault was a personal criminal act outside the course and scope of the Aggressor's employment and therefore cannot be imputed to Falck under respondeat superior. However, § 340.1 expressly encompasses liability based on an entity's own wrongful or negligent conduct where the entity owed the plaintiff a duty of care and its conduct was a legal cause of the childhood sexual assault. (§ 340.1, subd. (a)(2).) Accordingly, Plaintiff need not establish that the Aggressor's sexual assault itself occurred within the course and scope of his employment to pursue the negligence-based theory alleged under this section. Falck's respondeat superior argument therefore does not dispose of this claim.

Falck also argues that, even assuming a special relationship existed, the SAC alleges no facts showing Falck knew or should have known that the Aggressor posed a risk of sexual misconduct. That argument does not defeat the claim at the pleading stage. Plaintiff's claim is not limited to negligent hiring, retention, or supervision based on Falck's prior knowledge of the Aggressor's propensity for misconduct. Rather, the SAC alleges that Falck itself assumed custody and supervision of a 14-year-old minor, exercised control over her movements, and failed to reasonably protect and supervise her during that period. Whether Falck exercised reasonable care under those circumstances, including whether additional safeguards were required, presents factual issues concerning breach and causation.

The SAC adequately alleges facts supporting a claim under § 340.1, subdivision (a)(2), and is sufficiently certain to permit Falck to respond. Accordingly, the demurrer to the first cause of action is **OVERRULED**.

Second Cause of Action for Sexual Battery

To state a claim for sexual battery, a plaintiff must allege that: (1) the defendant intended to cause harmful or offensive contact with an intimate part of the plaintiff, and sexually offensive contact directly or indirectly resulted; (2) the plaintiff did not consent to the touching; and (3) the plaintiff was harmed or offended by the defendant's conduct. (Civ. Code, § 1708.5; CACI No. 1306.)

An employer may be held vicariously liable for an employee's tort committed within the scope of employment. (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 296 ("*Lisa M.*").) For respondeat superior to apply, the employee's tort must be engendered by or arise from the employment; the risk must be

“typical of or broadly incidental to” the employer’s enterprise or a generally foreseeable consequence of the employment. (*Id.* at pp. 298–299.) Although scope of employment is ordinarily a question of fact, it becomes a question of law where the facts are undisputed and no conflicting inferences are possible. (*Id.* at p. 299.) In *Lisa M.*, the Supreme Court held that a hospital was not vicariously liable for an ultrasound technician’s sexual assault of a patient because the employment merely provided the employee with the opportunity, access, and proximity to commit the assault; the assault arose from the employee’s personal motives rather than the performance of his employment duties. (*Id.* at pp. 301–302.)

Alternatively, an employer may be liable for an employee’s intentional tort where the employer subsequently ratifies the unauthorized conduct. (*C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1110–1111.) Failure to investigate or respond to allegations of an intentional tort, or failure to discharge the employee, may constitute evidence of ratification, and ratification is generally a question of fact. (*Ibid.*) However, ratification requires conduct from which the employer’s intention to approve or adopt the employee’s wrongful act may reasonably be inferred. (*Ibid.*)

Here, the SAC alleges that the Aggressor intentionally engaged in sexual contact with Plaintiff by pulling her toward him and placing his hand under her shirt and bra to grope her breasts, and that Plaintiff suffered damages as a result. (SAC ¶¶ 22, 48–50.) As to Falck, the SAC alleges that Defendants were agents and employees of one another and acted within the authority granted to them while Plaintiff was under Defendants’ custody and control. (SAC ¶ 52.) It further alleges that, after learning of the assault, Falck failed to take appropriate corrective action, including failing to promptly terminate the Aggressor and failing to implement safeguards to prevent similar misconduct, “thereby ratifying the conduct.” (SAC ¶ 53.)

The SAC sufficiently alleges a sexual battery by the Aggressor, but not a basis for holding Falck liable for that intentional tort. Falck did not allegedly make the offensive contact, and its alleged negligence in failing to protect or supervise Plaintiff does not itself constitute sexual battery. Thus, liability against Falck must rest on respondeat superior or ratification.

The respondeat superior allegations are insufficient. As in *Lisa M.*, the Aggressor’s employment placed him in proximity to Plaintiff and gave him some authority over her movements, but the alleged touching was unrelated to his EMT duties. The SAC itself alleges that he “used [the] opportunity” created when others were distracted

and Plaintiff's guardian was absent to grope her. (SAC ¶ 22.) This suggests the employment merely provided the opportunity for the assault, which is insufficient under *Lisa M.*

Plaintiff's reliance on *Samantha B. v. Aurora Vista Del Mar, LLC* (2022) 77 Cal.App.5th 85 is unpersuasive. There, the employee had prolonged custodial interaction with vulnerable psychiatric patients under circumstances that increased the foreseeable risk of sexual exploitation. (*Id.* at pp. 107–108.) Here, Plaintiff was not being treated by the Aggressor, and the alleged interaction was brief and incidental to her brother's emergency transport. The circumstances are therefore more analogous to *Lisa M.*

Nor do Falck's alleged special relationship and independent duty to protect Plaintiff establish sexual battery liability. Those allegations may support a negligence claim, but they do not show that the Aggressor acted within the scope of employment.

The ratification allegations are also insufficient. The SAC alleges only that Falck did not "promptly" terminate the Aggressor and failed to implement safeguards after the assault. (SAC ¶ 53.) It does not allege facts showing that Falck, through an authorized decisionmaker, approved or adopted the misconduct. The SAC's conclusory allegation that Falck "ratif[ied] the conduct" is insufficient.

Accordingly, the demurrer to the Second Cause of Action is SUSTAINED without leave to amend. This is Plaintiff's third attempt to plead a viable sexual battery claim against Falck, and Plaintiff has not identified additional facts that could cure the deficiencies concerning respondeat superior or ratification.

Third Cause of Action for Negligence

The basic elements of a negligence claim are: (1) a duty on the part of defendant toward plaintiff, (2) breach of that duty, and (3) harm caused by the breach. (*Kesner v. Sup.Ct. (Pneumo Abex, LLC)* (2016) 1 Cal.5th 1132, 1142.)

Generally, one who has not created a peril has no duty to affirmatively act so as to prevent harm to third persons. Absent an applicable statute, the law does not require one to act as a "Good Samaritan." (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) However, the law does impose a legal duty to affirmatively act (to protect someone else from danger or to control the conduct of a third person) if there is a "special relationship" between defendant and the